

COMMITTEE ON EDUCATION
SENATE AMENDMENTS TO H.B. 2249
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 1-602, Arizona Revised Statutes, is amended to
3 read:

4 1-602. Parents' bill of rights; governmental interference
5 restricted; burden of proof; civil actions;
6 definitions

7 A. All parental rights are exclusively reserved to a parent of a
8 minor child without obstruction or interference from this state, any
9 political subdivision of this state, any other governmental entity or any
10 other institution, including:

11 1. The right to direct the education of the minor child.

12 2. All rights of parents identified in title 15, including the
13 right to access and review all records relating to the minor child.

14 3. The right to direct the upbringing of the minor child.

15 4. The right to direct the moral or religious training of the minor
16 child.

17 5. The right to make all health care decisions for the minor child,
18 including rights pursuant to sections 15-873, 36-2271 and 36-2272, unless
19 otherwise prohibited by law.

20 6. The right to request, access and review all written and
21 electronic medical records of the minor child unless otherwise prohibited
22 by law or unless the parent is the subject of an investigation of a crime
23 committed against the minor child and a law enforcement official requests
24 that the information not be released.

25 7. The right to consent in writing before a biometric scan of the
26 minor child is made pursuant to section 15-109.

27 8. The right to consent in writing before any record of the minor
28 child's blood or deoxyribonucleic acid is created, stored or shared,
29 except as required by section 36-694, or before any genetic testing is

1 conducted on the minor child pursuant to section 12-2803 unless authorized
2 pursuant to section 13-610 or a court order.

3 9. The right to consent in writing before this state or any of its
4 political subdivisions makes a video or voice recording of the minor
5 child, unless the video or voice recording is made during or as a part of
6 a court proceeding, by law enforcement officers during or as part of a law
7 enforcement investigation, during or as part of an interview in a criminal
8 or child safety services investigation or to be used solely for any of the
9 following:

10 (a) Safety demonstrations, including the maintenance of order and
11 discipline in the common areas of a school or on pupil transportation
12 vehicles.

13 (b) A purpose related to a legitimate academic or extracurricular
14 activity.

15 (c) A purpose related to regular classroom instruction.

16 (d) Security or surveillance of buildings or grounds.

17 (e) A photo identification card.

18 10. The right to be notified promptly if an employee of this state,
19 any political subdivision of this state, any other governmental entity or
20 any other institution suspects that a criminal offense has been committed
21 against the minor child by someone other than a parent, unless the
22 incident has first been reported to law enforcement and notifying the
23 parent would impede a law enforcement or child safety services
24 investigation. This paragraph does not ~~create~~ ESTABLISH any new
25 obligation for school districts and charter schools to report misconduct
26 between students at school, such as fighting or aggressive play, that is
27 routinely addressed as a student disciplinary matter by the school.

28 11. The right to obtain information about a child safety services
29 investigation involving the parent pursuant to section 8-807.

30 12. THE RIGHT TO CONSENT IN WRITING AND BE INFORMED IF ANY SCHOOL
31 EMPLOYEE FACILITATES OR IMPLEMENTS ANY FORM OF SOCIAL TRANSITIONING FOR
32 THE MINOR CHILD, INCLUDING ADDRESSING OR REFERRING TO THE MINOR CHILD BY A
33 NAME OR NICKNAME OTHER THAN THE MINOR CHILD'S LEGAL NAME OR A NATURAL
34 DERIVATIVE OF THAT NAME OR REFERRING TO THE MINOR CHILD USING PRONOUNS,
35 TITLES OR PERSONAL IDENTIFIERS THAT DO NOT ALIGN WITH THE MINOR CHILD'S
36 SEX. [A SCHOOL DISTRICT OR SCHOOL EMPLOYEE MAY NOT FACILITATE OR
37 IMPLEMENT ANY FORM OF SOCIAL TRANSITIONING FOR A MINOR WITHOUT THE WRITTEN
38 CONSENT OF EACH OF THE MINOR'S PARENTS.]

39 13. IN ADDITION TO THE REQUIREMENTS PRESCRIBED IN PARAGRAPH 2 OF
40 THIS SUBSECTION, THE RIGHT TO REQUEST, REVIEW AND ACCESS THE MINOR CHILD'S
41 COMPLETE EDUCATIONAL RECORD. A SCHOOL EMPLOYEE MAY NOT WITHHOLD
42 INFORMATION FROM A PARENT REGARDING THE PARENT'S MINOR CHILD, INCLUDING
43 ANY INFORMATION IN THE MINOR CHILD'S EDUCATIONAL RECORD REGARDING THE
44 MINOR CHILD'S PHYSICAL, EMOTIONAL, MENTAL OR ACADEMIC WELL-BEING.

45 B. This section does not authorize or allow a parent to engage in
46 conduct that is unlawful or to abuse or neglect a child in violation of
47 the laws of this state. This section does not prohibit courts, law

1 enforcement officers or employees of a government agency responsible for
2 child welfare from acting in their official capacity within the scope of
3 their authority. This section does not prohibit a court from issuing an
4 order that is otherwise allowed by law.

5 C. Any attempt to FACILITATE, encourage or coerce OR ANY COMPLETED
6 ACT THAT FACILITATES, ENCOURAGES OR COERCES a minor child to withhold
7 information from the child's parent is grounds for discipline of an
8 employee of this state, any political subdivision of this state, any other
9 governmental entity or any other institution, except for law enforcement
10 personnel WHO HAVE PROBABLE CAUSE TO BELIEVE THAT A CRIME WAS COMMITTED BY
11 THE MINOR CHILD'S PARENT AND WHO WITHHOLDS THAT INFORMATION IN THE COURSE
12 OF AN INVESTIGATION OF THAT CRIME. THIS STATE, A POLITICAL SUBDIVISION OF
13 THIS STATE, A GOVERNMENTAL ENTITY OR AN INSTITUTION MAY NOT MAINTAIN A
14 POLICY THAT ALLOWS AN EMPLOYEE TO FACILITATE, ENCOURAGE OR COERCE A MINOR
15 CHILD TO WITHHOLD INFORMATION FROM THE MINOR CHILD'S PARENT.

16 D. Unless those rights have been legally waived or legally
17 terminated, parents have inalienable rights that are more comprehensive
18 than those listed in this section. This chapter does not prescribe all
19 rights of parents or preempt or foreclose claims or remedies in support of
20 parental rights that are available under the constitution, statutes or
21 common law of this state. Unless otherwise required by law, the rights of
22 parents of minor children shall not be limited or denied.

23 E. Except as prescribed in subsections F and ~~[G]~~ [H] of this
24 section, this state, a political subdivision of this state or any other
25 governmental entity, or any official of this state, a political
26 subdivision of this state or any other governmental entity acting under
27 color of law, shall not interfere with or usurp the fundamental right of
28 parents to direct the upbringing, education, health care and mental health
29 of their children. A parent may bring suit against a governmental entity
30 or official described in this subsection based on any violation of the
31 statutory rights set forth in this chapter or any other action that
32 interferes with or usurps the fundamental right of parents to direct the
33 upbringing, education, health care and mental health of their children in
34 the superior court in the county in which the violation or other action
35 occurs or in federal court, if authorized by federal law, or before an
36 administrative tribunal of appropriate jurisdiction. A parent may raise a
37 violation of this chapter as a claim or a defense. [IN ANY ACTION BROUGHT
38 UNDER THIS SECTION, A SHOWING OF A VIOLATION OF THE RIGHTS GUARANTEED OR
39 RECOGNIZED BY THIS SECTION ESTABLISHES A REBUTTABLE PRESUMPTION OF
40 IRREPARABLE HARM.]

41 F. In any action under subsection E of this section, the
42 governmental entity or official described in subsection E of this section
43 has the burden of proof to demonstrate both of the following:

44 1. That the interference or usurpation is essential to accomplish a
45 compelling government interest of the highest order, as long recognized in
46 the history and traditions of this state in the operation of its
47 regulatory powers.

1 2. That the method of interference or usurpation used by the
2 government is narrowly tailored and is not otherwise served by a less
3 restrictive means.

4 [G. THIS STATE, ANY POLITICAL SUBDIVISION OF THIS STATE OR ANY
5 OFFICIAL ACTING UNDER COLOR OF LAW EXPRESSLY WAIVES ALL CLAIMS TO
6 SOVEREIGN, QUALIFIED OR DISCRETIONARY IMMUNITY FOR ANY VIOLATION OF THIS
7 SECTION.]

8 ~~[G.]~~[H.] A governmental entity or official described in subsection
9 E of this section may interfere with or usurp the fundamental right of
10 parents to direct the upbringing, education, health care and mental health
11 of their children only if the governmental entity or official successfully
12 demonstrates both elements described in subsection F of this section. If
13 the governmental entity or official is unsuccessful, the court shall grant
14 appropriate relief, ~~such as~~ INCLUDING declaratory or injunctive relief,
15 compensatory damages and attorney fees, based on the facts of the case and
16 the law as applied to the facts. AT A MINIMUM, THE GOVERNMENTAL ENTITY IS
17 LIABLE TO THE MINOR CHILD'S PARENT IN AN AMOUNT OF \$500,000[.] AND A
18 GOVERNMENT OFFICIAL IS PERSONALLY LIABLE TO THE MINOR CHILD'S PARENT IN AN
19 AMOUNT OF \$20,000 FOR EACH SEPARATE INSTANCE OF INTERFERING WITH OR
20 USURPING A FUNDAMENTAL RIGHT. A GOVERNMENTAL ENTITY THAT EMPLOYS THE
21 OFFICIAL MAY NOT INDEMNIFY AN OFFENDING OFFICIAL AND MAY NOT USE PUBLIC
22 MONIES TO PAY FOR THE OFFICIAL'S LIABILITY. THE RIGHT TO SUE BELONGS
23 INDIVIDUALLY TO EACH OF THE MINOR CHILD'S PARENTS[.] AND ONE PARENT MAY
24 FILE SUIT EVEN IF THE MINOR CHILD'S OTHER PARENT DOES NOT CONSENT TO THE
25 ACTION.

26 ~~[H.]~~[I.] IN ADDITION TO SUBSECTION ~~[G.]~~ [H] OF THIS SECTION, A
27 MINOR CHILD'S PARENT MAY BRING SUIT AGAINST AN EMPLOYEE WHO HAS OR WHO HAS
28 ATTEMPTED TO FACILITATE, ENCOURAGE OR COERCE A MINOR CHILD TO WITHHOLD
29 INFORMATION FROM THE MINOR CHILD'S PARENT. AT A MINIMUM, AN EMPLOYEE WHO
30 IS FOUND LIABLE IS PERSONALLY LIABLE IN AN AMOUNT OF \$20,000[.] AND A
31 GOVERNMENTAL ENTITY THAT EMPLOYS THE EMPLOYEE MAY NOT INDEMNIFY AN
32 OFFENDING EMPLOYEE AND MAY NOT USE PUBLIC MONIES TO PAY FOR THE EMPLOYEE'S
33 LIABILITY. A PARENT MAY BRING SUIT AGAINST THIS STATE, ANY POLITICAL
34 SUBDIVISION OF THIS STATE OR ANY OTHER GOVERNMENTAL ENTITY OR INSTITUTION
35 THAT MAINTAINS A POLICY THAT ALLOWS THE FACILITATION, ENCOURAGEMENT OR
36 COERCION BY THE EMPLOYEE OF A MINOR CHILD TO WITHHOLD INFORMATION FROM THE
37 MINOR CHILD'S PARENT. AT A MINIMUM, THE GOVERNMENTAL ENTITY OR
38 INSTITUTION THAT MAINTAINED THE POLICY IS LIABLE TO THE MINOR CHILD'S
39 PARENT FOR \$500,000 FOR EACH OCCURRENCE ~~[WHERE]~~ [IN WHICH] INFORMATION WAS
40 WITHHELD FROM THE MINOR CHILD'S PARENT. THE RIGHT TO SUE BELONGS
41 INDIVIDUALLY TO EACH OF THE MINOR CHILD'S PARENTS[.] AND ONE PARENT MAY
42 FILE SUIT EVEN IF THE MINOR CHILD'S OTHER PARENT DOES NOT CONSENT TO THE
43 ACTION. THE STATUTE OF LIMITATIONS FOR AN ACTION COMMENCED PURSUANT TO
44 THIS SUBSECTION IS FIVE YEARS AFTER THE CONDUCT CEASED AND THE MINOR
45 CHILD'S PARENT BECAME AWARE OF THE CONDUCT.

46 ~~[I.]~~[J.] A MINOR CHILD'S PARENT MAY DEMONSTRATE THAT A GOVERNMENTAL
47 ENTITY OR INSTITUTION MAINTAINED A POLICY OF FACILITATING, ENCOURAGING OR

1 COERCING A MINOR CHILD TO WITHHOLD INFORMATION FROM THE MINOR CHILD'S
2 PARENT THROUGH ANY OF THE FOLLOWING:

3 1. WRITTEN DOCUMENTS THAT ARE MAINTAINED BY THE GOVERNMENTAL ENTITY
4 OR INSTITUTION, INCLUDING AS GUIDANCE OR POLICY DOCUMENTS, EMAILS,
5 MEMORANDA OR SPREADSHEETS.

6 2. DEMONSTRATING THAT A PERSON WHO HAS SUPERVISORY AUTHORITY IN THE
7 GOVERNMENTAL ENTITY OR INSTITUTION REQUIRED OR RECOMMENDED THAT EMPLOYEES
8 ENGAGE IN THE CONDUCT.

9 3. DEMONSTRATING THAT THE GOVERNMENTAL ENTITY'S OR INSTITUTION'S
10 EMPLOYEES REGULARLY ENGAGED IN THE CONDUCT. [A CAUSE OF ACTION ACCRUES
11 SEPARATELY FOR EACH DISTINCT ACT OF FACILITATING, ENCOURAGING OR COERCING
12 A MINOR CHILD TO WITHHOLD INFORMATION FROM THE MINOR CHILD'S PARENT.
13 FAILING TO ABIDE BY A PARENT'S EXPRESS REQUEST OR HIDING THE ISSUE FROM A
14 PARENT CONSTITUTES A SEPARATE VIOLATION THAT TRIGGERS A NEW ACCRUAL DATE,
15 REGARDLESS OF WHEN THE PARENT FIRST SUSPECTED A SOCIAL TRANSITION WAS
16 OCCURRING.]

17 ~~[J.]~~[K.] WITHIN SIX MONTHS AFTER THE EFFECTIVE DATE OF THIS
18 AMENDMENT TO THIS SECTION, THIS STATE, A POLITICAL SUBDIVISION OF THIS
19 STATE OR A GOVERNMENTAL ENTITY OR INSTITUTION, INCLUDING AN EDUCATIONAL
20 INSTITUTION, OR AN EMPLOYEE OF THIS STATE, A POLITICAL SUBDIVISION OF THIS
21 STATE OR A GOVERNMENTAL ENTITY OR INSTITUTION THAT FACILITATED, ENCOURAGED
22 OR COERCED, OR ATTEMPTED TO FACILITATE, ENCOURAGE OR COERCE, A MINOR CHILD
23 TO WITHHOLD INFORMATION FROM THE MINOR CHILD'S PARENT BEFORE THE EFFECTIVE
24 DATE OF THIS AMENDMENT TO THIS SECTION SHALL DISCLOSE THE OFFENDING ACTION
25 TO THE MINOR CHILD'S PARENT. THIS STATE, A POLITICAL SUBDIVISION OF THIS
26 STATE OR A GOVERNMENTAL ENTITY OR INSTITUTION, INCLUDING AN EDUCATIONAL
27 INSTITUTION, OR AN EMPLOYEE OF THIS STATE, A POLITICAL SUBDIVISION OF THIS
28 STATE OR A GOVERNMENTAL ENTITY OR INSTITUTION IS CIVILLY LIABLE TO THE
29 PARENT OF A MINOR CHILD FOR ANY VIOLATION THAT WAS NOT DISCLOSED PURSUANT
30 TO THIS SUBSECTION. THIS STATE, A POLITICAL SUBDIVISION OF THIS STATE OR
31 A GOVERNMENTAL ENTITY OR INSTITUTION, INCLUDING AN EDUCATIONAL
32 INSTITUTION, IS LIABLE TO THE MINOR CHILD'S PARENT FOR AT LEAST \$500,000
33 FOR EACH SEPARATE ACT THAT WAS NOT DISCLOSED TO THE MINOR CHILD'S PARENT.
34 AN EMPLOYEE OF THIS STATE, A POLITICAL SUBDIVISION OF THIS STATE OR A
35 GOVERNMENTAL ENTITY OR INSTITUTION IS PERSONALLY LIABLE TO THE MINOR
36 CHILD'S PARENT FOR AT LEAST \$20,000 FOR EACH SEPARATE ACT THAT WAS NOT
37 DISCLOSED TO THE MINOR CHILD'S PARENT. A GOVERNMENTAL ENTITY OR
38 INSTITUTION MAY NOT INDEMNIFY AN OFFENDING EMPLOYEE AND MAY NOT USE PUBLIC
39 MONIES TO PAY FOR THE EMPLOYEE'S LIABILITY OR AN INSURANCE POLICY TO COVER
40 THE CIVIL LIABILITY.

41 ~~H.~~ ~~[K.]~~[L.] For the purposes of this section: ~~—~~

42 1. "EDUCATIONAL RECORD" INCLUDES ATTENDANCE RECORDS, TEST SCORES
43 FROM SCHOOL-ADMINISTERED TESTS AND STATEWIDE ASSESSMENTS, GRADES,
44 EXTRACURRICULAR ACTIVITY OR CLUB PARTICIPATION RECORDS, EMAIL ACCOUNT
45 RECORDS, ONLINE OR VIRTUAL ACCOUNTS OR DATA, DISCIPLINARY RECORDS,
46 COUNSELING RECORDS, PSYCHOLOGICAL RECORDS, APPLICATIONS FOR ADMISSION,
47 HEALTH AND IMMUNIZATION INFORMATION, INCLUDING ANY MEDICAL RECORDS

1 MAINTAINED BY A HEALTH CLINIC OR MEDICAL FACILITY THAT IS OPERATED OR
2 CONTROLLED BY A SCHOOL DISTRICT OR THAT IS LOCATED ON SCHOOL DISTRICT
3 PROPERTY, TEACHER AND COUNSELOR EVALUATIONS, REPORTS OF THE MINOR CHILD'S
4 BEHAVIORAL PATTERNS, THERAPY NOTES AND TREATMENT PLAN.

5 2. "Parent" means the natural or adoptive parent or legal guardian
6 of a minor child.

7 3. "SOCIAL TRANSITIONING" MEANS THE PROCESS IN WHICH A PERSON GOES
8 FROM IDENTIFYING WITH AND LIVING AS A GENDER THAT CORRESPONDS TO THE
9 PERSON'S SEX TO IDENTIFYING WITH AND LIVING AS A GENDER THAT IS DIFFERENT
10 FROM THE PERSON'S SEX AND MAY INVOLVE SOCIAL, LEGAL OR PHYSICAL CHANGES.

11 Enroll and engross to conform

12 Amend title to conform

2249ED.docx

03/10/2026

2:36 PM

C: ED

130NWJQLY